

RESOLUTION NO. _____

ENTITLED: “A RESOLUTION GRANTING SPECIAL USE APPROVAL FOR A GAMING CENTER PURSUANT TO UNIFIED DEVELOPMENT CODE SECTION 2.2.7 AND GRANTING LOCAL APPROVAL OF A SITE-SPECIFIC APPLICATION FOR A SIMULCASTING PERMIT TO BE ISSUED BY THE WYOMING GAMING COMMISSION PURSUANT TO WYO. STAT. § 11-25-210 FOR PROPERTY LOCATED AT 1734 MEADOWLAND DRIVE”

WHEREAS, Bally’s Wyoming LLC, d/b/a Bally’s Cheyenne (the “Applicant”) has submitted an application (the “Application”) under Section 2.2.7 of the Cheyenne Unified Development Code (“UDC”) for Special Use approval to establish a Gaming Center, as described in UDC Subsection 1.4.4.c, on property located at 1734 Meadowland Drive (the “Property”), which is zoned CB Community Business;

WHEREAS, pursuant to UDC Section 2.2.7.c, notice of the Application was posted, published, and mailed in the manner and time required by law;

WHEREAS, pursuant to UDC Section 5.1.4 and Table 5-1, a Gaming Center is a use permitted after Special Use review in the zone district in which the Property is located;

WHEREAS, City staff has reviewed the Application for compliance with the review criteria set forth in UDC Section 2.2.7.d and the Gaming Center development standards of UDC Section 5.7.13, including the applicable district standard of UDC Subsection 5.7.13.a, and determined that the proposed use satisfies the applicable review criteria and lot, building, development, and design standards of the UDC;

WHEREAS, after considering the Application, the accompanying staff report, the evidence and public comment in the record, and each review criterion set forth in UDC Section 2.2.7.d, the Governing Body finds that the record supports the approval provided in this Resolution and discloses no material concern under those criteria warranting denial;

WHEREAS, the Applicant also seeks the City’s site-specific approval of its application to the Wyoming Gaming Commission (the “Commission”) for a simulcasting permit, including historic horse racing terminals, under Wyo. Stat. § 11-25-210, and because the proposed simulcasting would occur within the City’s corporate limits, the Governing Body serves as the “local approving authority” pursuant to Wyo. Stat. §§ 11-25-102(a)(xxiii) and 11-25-210(d)(i);

WHEREAS, before this action, the Applicant filed its local-approval application, paid the notice-publication cost, and identified the specific location and the number of historic horse racing terminals proposed for that location, as required by Wyo. Stat. § 11-25-210(e);

WHEREAS, in accordance with Wyo. Stat. § 11-25-210(f), notice of the simulcasting permit application was published once a week for two (2) consecutive weeks in a newspaper of general circulation and posted to the City’s official website, and the notice identified the date, time,

and place of the Governing Body meeting designated for the receipt of protests, which meeting occurred before the Governing Body took action on the Application as required by Wyo. Stat. § 11-25-210(f) and (g)(i);

WHEREAS, Wyo. Stat. § 11-25-210(d)(iii) affords the Board of County Commissioners of Laramie County thirty (30) days to review and object to the simulcasting permit application, which was timely submitted to the Board and no comments or objections were received within that period; and

WHEREAS, having considered the Applicant's site-specific application, the accompanying staff report, the evidence and public comment in the record, and the requirements, standards, and limitations of Wyo. Stat. § 11-25-210, and no timely objection having been received, the Governing Body, acting as the local approving authority, finds that the record supports granting the City's local approval of the Applicant's simulcasting permit application, subject to the reasonable conditions set forth herein, which were negotiated in good faith with the Applicant in accordance with Wyo. Stat. § 11-25-210(g)(iii).

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Application to operate a Gaming Center as a Special Use at 1734 Meadowland Drive is approved under UDC Section 2.2.7, subject to the following conditions of Special Use approval:

1. The Gaming Center shall be developed and operated in substantial compliance with the conceptual site plan depicted in Exhibit A which is attached hereto and incorporated herein;
2. The Special Use approval is valid for three (3) years from the effective date of this Resolution, unless it terminates earlier under UDC Subsection 2.2.7.c.4 upon expiration of the associated Commission-issued simulcasting permit. If the permit is suspended, revoked, surrendered, or otherwise ceases to authorize simulcasting, simulcasting at the Property shall cease, and the City may enforce or suspend the Special Use approval pursuant to UDC Article 1.3; and
3. Gaming Center shall operate only during the hours of 7:00 a.m. to 2:00a.m.

BE IT FURTHER RESOLVED that, acting solely as the local approving authority under Wyo. Stat. § 11-25-210, the Governing Body grants the City's local approval of the Applicant's site-specific application for a simulcasting permit to be issued by the Commission for the Property, provided that historic horse racing terminals may be located only within the area(s) of the permitted premises depicted on Exhibit B, which is attached hereto and incorporated herein;

BE IT FURTHER RESOLVED that the City's local simulcasting approval does not replace or limit the Applicant's independent obligation to comply with the UDC, the Cheyenne Municipal Code, and all other applicable law, as amended. A violation of an independently applicable requirement shall be enforced under the law establishing that requirement and, standing alone, shall not constitute a violation of the local simulcasting approval unless the requirement is

expressly identified in this Resolution as a negotiated condition under Wyo. Stat. § 11-25-210(g)(vii)(A);

BE IT FURTHER RESOLVED that the City's local simulcasting approval takes effect only upon the Commission's issuance of the associated simulcasting permit for the Property and remains effective for the same term as that permit, as required by Wyo. Stat. § 11-25-210(g)(v). The local simulcasting approval does not extend the term of the separate Special Use approval permitted under UDC Subsection 2.2.7.c.4. and simulcasting may occur only while both approvals and all other approvals required by law are in effect;

BE IT FURTHER RESOLVED that the Governing Body may revoke the City's local simulcasting approval, or deny its renewal, only for good cause as limited to the grounds set forth in Wyo. Stat. § 11-25-210(g)(vii)(A) through (D), subject to the following:

1. With respect to a breach of a reasonable condition imposed by the City or the Wyoming Gaming Commission, the City shall provide the permitholder written notice identifying the breach and a reasonable opportunity to cure. Good cause under Wyo. Stat. § 11-25-210(g)(vii)(A) shall not exist unless the permitholder fails to take reasonable steps to cure the breach within ten (10) business days after receiving written notice from the City or the Commission, or by a later date agreed upon by the permitholder and the City or the Commission, as applicable.
2. Upon a showing of good cause by the permitholder, the Governing Body, together with the Commission, may extend the two (2)-year period for commencement of simulcasting for one (1) additional year as provided in Wyo. Stat. § 11-25-210(g)(vii)(C).
3. A renewal application shall be filed and processed in accordance with Wyo. Stat. § 11-25-210(e) and (f), including the requirement that the application be filed not later than ninety (90) days prior to expiration of the permit, that the City publish notice of the application and hold the designated meeting for protests not later than thirty (30) days prior to expiration, and that the City not approve or deny the renewal before the date set for the designated meeting. A denial of renewal shall be for good cause as limited by Wyo. Stat. § 11-25-210(g)(vii)(A) through (D) and shall be determined in accordance with paragraph 4 of this section.
4. Before revoking the City's local approval or denying its renewal on any ground set forth in Wyo. Stat. § 11-25-210(g)(vii)(A) through (D), the City shall provide the permitholder written notice of the proposed action and the grounds supporting it, and shall issue written findings and conclusions in support of any such decision, as required by Wyo. Stat. § 11-25-210(g)(vi). This Resolution establishes no additional hearing or adjudicatory procedure for such action; the City may adopt any such procedure by separate ordinance.
5. Nothing in this Resolution creates any additional right of administrative appeal from a final decision of the Governing Body. Judicial review of a decision denying renewal or

revoking the City's local approval shall be governed by Wyo. Stat. § 11-25-210(h) and, as applicable, § 11-25-210(j).

BE IT FURTHER RESOLVED, that this Special Use approval is a land-use approval under the Unified Development Code and shall terminate by expiration as provided above. Any enforcement of the conditions of this Special Use approval shall proceed under the Unified Development Code and the Cheyenne Municipal Code. The good-cause standard of Wyo. Stat. § 11-25-210(g)(vii) governs only the local simulcasting approval and does not enlarge or diminish the City's authority over the Special Use approval.

BE IT FINALLY RESOLVED, the Mayor, City Clerk, and Director of Planning and Development are hereby authorized to take all actions and execute all documents reasonably necessary to carry out and transmit this approval, including notification to the Wyoming Gaming Commission.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2026.

Patrick Collins, Mayor

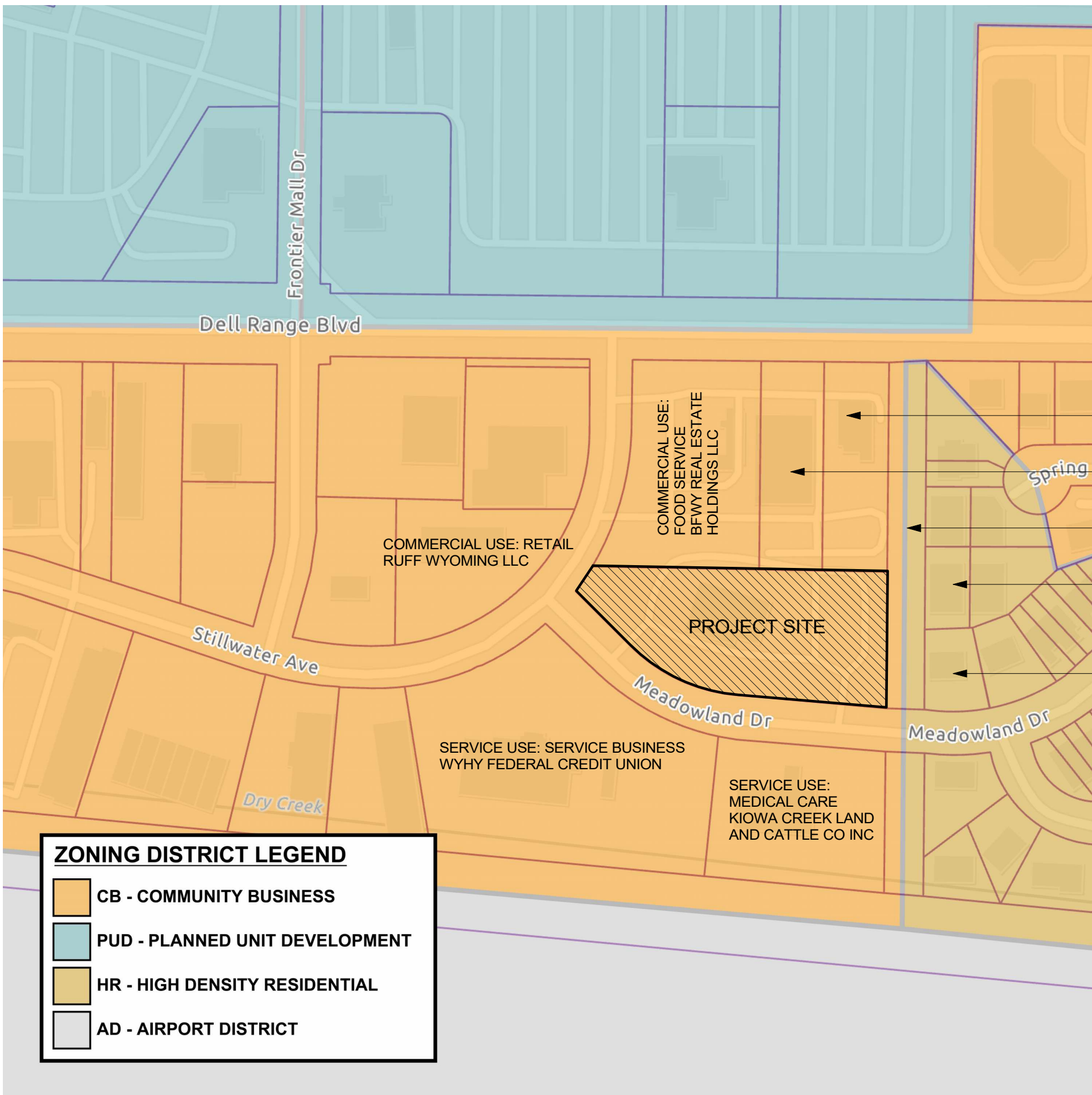
(SEAL)

ATTEST:

Kylie Soden, City Clerk

Exhibit A

BALLY'S CHEYENNE 1734 MEADOWLAND DR. CHEYENNE, WYOMING MEADOWBROOKE PARK: LOTS 3, 4 & 5, BLOCK 5, LESS THAT POR PLATTED TO B & R SUBDIVISION



EXISTING SITE CONDITION NOTES:

- EXISTING LANDSCAPE WILL REMAIN. ANY PLANTS/TREES/GROUND COVER IN DISREPAIR WILL BE REPAIRED/REPLACED TO THE EXTENT AS REQUIRED TO MEET UDC STANDARDS.
- EXISTING SIDEWALK, CURB AND GUTTER ON THE PROPERTY WILL REMAIN.
- THE EXISTING LINE OF SIGHT AT THE INTERSECTION OF MEADOWLAND DR. AND STILLWATER AVE. WILL NOT BE CHANGED.
- NO NEW STRIPES WILL BE CONSTRUCTED ON THE SITE.
- NO CHANGES WILL BE MADE TO THE EXISTING SITE DRAINAGE.
- NO CHANGES WILL BE MADE TO THE EXISTING IRRIGATION SYSTEM(S).

PROPOSED USE (ARTICLE 1.4.4 CHEYENNE UNIFIED DEVELOPMENT CODE):

SERVICE USE: ENTERTAINMENT, AMUSEMENT, RECREATION SERVICES—OTHER

ZONING DISTRICT (ARTICLE 5.1.2 CHEYENNE UNIFIED DEVELOPMENT CODE):

CB: COMMUNITY BUSINESS

EXISTING BUILDING HEIGHT:

HEIGHT: +/-19'-6" (AVERAGE HEIGHT BETWEEN WALL TOP PLATE AND RIDGE)

EXISTING SITE AREAS (TO REMAIN):

TOTAL BUILDING AREA:	7,459 SF
TOTAL PATIO AREA:	850 SF (>8% OF BUILDING)
TOTAL PARKING/PAVED AREAS:	49,268 SF
LANDSCAPED AREAS:	10,220 SF (>15% OF TOTAL SITE)
TOTAL SITE AREA:	67,767 SF

PARKING REQUIREMENTS (ARTICLE 6.2.4 CHEYENNE UNIFIED DEVELOPMENT CODE):

TABLE 6-2: REQUIRED AUTOMOBILE PARKING	
ASSEMBLY: 1 SPACE PER EACH 5 SEATS (MAXIMUM CAPACITY)	
PROPOSED OCCUPANT LOAD: 448	
REQUIRED PARKING SPACES: 90	
PARKING SPACES PROVIDED: 103	

PARKING AND PASSENGER LOADING FACILITIES (DEPARTMENT OF JUSTICE 2010 ACCESSIBILITY STANDARDS)

1106.2 REQUIRED
WHERE PARKING IS PROVIDED, ACCESSIBLE PARKING SPACES SHALL BE PROVIDED IN COMPLIANCE WITH TABLE 1106.2, EXCEPT AS REQUIRED BY SECTIONS 1106.3 THROUGH 1106.5, WHERE MORE THAN ONE PARKING FACILITY IS PROVIDED ON A SITE, THE NUMBER OF PARKING SPACES REQUIRED TO BE ACCESSIBLE SHALL BE CALCULATED SEPARATELY FOR EACH PARKING FACILITY.

TABLE 1106.2 ACCESSIBLE PARKING SPACES
TOTAL PARKING SPACES: 103

REQUIRED MINIMUM NUMBER OF ACCESSIBLE SPACES PER TABLE 1106.2: **5 ACCESSIBLE SPACES REQUIRED** (101 TO 150 TOTAL SPACES)

1106.5 VAN SPACES

FOR EVERY SIX OR FRACTION OF SIX ACCESSIBLE PARKING SPACES, AT LEAST ONE SHALL BE A VAN-ACCESSIBLE PARKING SPACE.

PROVIDED NUMBER OF ACCESSIBLE SPACES (NEW): 4 + 1 VAN = **5 ACCESSIBLE SPACES**

LANDSCAPE POINT SYSTEM (ARTICLE 6.3.4 CHEYENNE UNIFIED DEVELOPMENT CODE):

TABLE 6-8: TREE POINTS

REQUIRED POINTS: LANDSCAPE AREA 10,684 SF / 500 = 22

TREE TYPES	SIZE OR QUANTITY	POINT VALUE	TOTAL POINTS
EXISTING MATURE TREE	27	1.5	40.5

TABLE 6-9: GROUND COVER AND NON-TREE LANDSCAPE FEATURE POINTS

REQUIRED POINTS: LANDSCAPE AREA 10,684 SF / 500 = 22

AN ADMINISTRATIVE ADJUSTMENT IS BEING APPLIED FOR TO WAIVE THE NONCONFORMING GROUND COVER POINTS DUE TO EXISTING SOD.

LANDSCAPE FEATURE	SIZE OR QUANTITY	POINT VALUE	TOTAL POINTS
SHRUBS	48	25	12
EXISTING EVERGREEN OR DECIDUOUS SHRUBS			
TOTAL:			12

STREET TREES (ARTICLE 6.3.6 CHEYENNE UNIFIED DEVELOPMENT CODE):

THE ADDITION OF 'STREET TREES' ON PORTIONS OF THE BUILDING SITE AS REQUIRED IN UDC SECTION 6.3.6 WILL LIMIT VEHICLE SIGHT DISTANCE AT THE INTERSECTION OF MEADOWLAND DR. & STILLWATER AVE. AS WELL AS AT THE TWO ENTRY DRIVES IN AND OUT OF THE SITE. THE APPLICANT PROPOSES NO CHANGES TO THE EXISTING CONDITIONS.

SITE PLAN GENERAL NOTES

- ARCHITECTURAL DRAWINGS ARE BASED ON SURVEY INFORMATION & FIELD NOTES PREPARED BY OTHERS. THE ARCHITECT MAKES NO REPRESENTATION AS TO THE ACCURACY OF THE INFORMATION AND IS NOT RESPONSIBLE FOR ERRORS THEREIN OR CORRECTIONS REQUIRED AS A RESULT. CONTRACTOR SHALL VERIFY EXISTING/PROPOSED TOPOGRAPHY AND SITE CONDITIONS PRIOR TO CONSTRUCTION. REFER TO FLOOR PLAN FOR DETAILED BUILDING INFORMATION. SHOULD DISCREPANCIES EXIST, NOTIFY ARCHITECT FOR CLARIFICATION PRIOR TO CONSTRUCTION.
- IT IS ASSUMED THAT EXISTING SITE AND STORM DRAINAGE IS ADEQUATE AND SHALL NOT BE ALTERED UNLESS OTHERWISE INDICATED.
- IT IS ASSUMED THAT EXISTING SITE UTILITIES ARE ADEQUATE AND SHALL NOT BE ALTERED UNLESS OTHERWISE INDICATED.
- PROVIDE SIGNAGE FOR FIRE ACCESS, HANDICAPPED ACCESSIBILITY, ETC., AS REQUIRED BY GOVERNING AGENCIES AND AUTHORITIES HAVING JURISDICTION.
- NO EXTERIOR VENDING OR DISPLAY SHALL BE ALLOWED.
- ALL EXTERIOR AND GROUND MOUNTED MECHANICAL, ELECTRICAL, AND COMMUNICATIONS EQUIPMENT, METERS, ETC. SHALL BE PAINTED (AS ALLOWABLE) AND SCREENED FROM VIEW WITH LANDSCAPE ELEMENTS. MAINTAIN CODE-REQUIRED ACCESS AND CLEARANCES.
- PROTECT ALL EXISTING TREES AND VEGETATION UNLESS SPECIFICALLY INDICATED TO BE REMOVED.
- PROVIDE FIRE LANE DEMARCATION AND SIGNAGE TO COMPLY WITH FIRE MARSHALL REQUIREMENTS. DO NOT PAINT CURBS.
- COORDINATE A JOINT SITE VISIT WITH ARCHITECT AND FIRE MARSHALL TO DETERMINE SIGNAGE AND KNOX BOX LOCATIONS.
- SITE SIGNAGE MAY REQUIRE SEPARATE APPROVALS AND PERMITS. COORDINATE AND SUBMIT TO LOCAL JURISDICTION AND ARCHITECT FOR APPROVAL PRIOR TO FABRICATION AND INSTALLATION.
- CONTRACTOR SHALL ENSURE THAT THE RUNNING SLOPE OF REQUIRED ACCESSIBLE ROUTES DOES NOT EXCEED 2%. MAXIMUM CROSS SLOPE DOES NOT EXCEED 2%, AND NO VERTICAL CHANGE EXCEEDS 1/4" WITHOUT BEVELING (OR EXCEEDS 1/2" WITHOUT A RAMP). THE MAXIMUM SURFACE SLOPE WITHIN A HANDICAPPED ACCESSIBLE PARKING SPACE SHALL NOT EXCEED 2% IN ANY DIRECTION.
- THE CONTRACTOR SHALL BE RESPONSIBLE FOR DETERMINING EXACT LOCATIONS OF UTILITIES AND DRAINAGE STRUCTURES WHETHER SHOWN ON PLANS OR NOT. THE CONTRACTOR SHALL UNCOVER EXISTING UTILITIES TO VERIFY SIZE, ELEVATION, ROUTES, LOCATIONS AND NOTIFY THE ARCHITECT OF DISCREPANCIES PRIOR TO CONSTRUCTION. THE CONTRACTOR SHALL REPAIR AT HIS OWN EXPENSE ANY DAMAGE TO EXISTING UTILITIES CAUSED BY FAILURE TO DO SO.
- THE CONTRACTOR SHALL BE RESPONSIBLE FOR COORDINATING WITH ALL UTILITY COMPANIES AND APPROPRIATE AGENCIES FOR PERMITS, APPROVALS, CONNECTIONS, TESTS AND TEMPORARY SERVICES DURING CONSTRUCTION.
- SLOPE GRADE AWAY FROM BUILDING AT 1/2" PER FOOT (MIN.) AT LANDSCAPED AREAS AND 1/8" PER FOOT (MIN.) AT HARDSCAPED (PAVED) AREAS FOR A DISTANCE OF 5'-0" (MIN.) U.N.O.
- GRADES ADJACENT TO ELEVATED TERRACES SHALL NOT EXCEED 30" VERTICAL OFFSET AT TERRACE EDGE. UNLESS GUARDRAILS ARE INCLUDED AT THE TERRACE EDGE. VERTICAL TRANSITIONS FROM SIDEWALK SURFACES TO ADJACENT LANDSCAPED AREAS, PAVED PARKING AREAS AND DRIVE LANES SHALL NOT EXCEED 6".

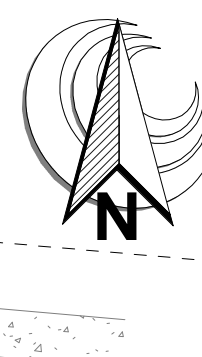
SITE PLAN NOTES

- ACCESSIBLE PARKING SPACE COMPLYING WITH THE 2010 DOJ ADA STANDARDS SECTION 502. PROVIDE IDENTIFICATION SIGNS COMPLYING WITH SECTION 502.6. REUSE EXISTING SIGNAGE WHERE POSSIBLE.
- VAN ACCESSIBLE PARKING SPACE COMPLYING WITH THE 2010 DOJ ADA STANDARDS SECTION 502. PROVIDE IDENTIFICATION SIGNS COMPLYING WITH SECTION 502.6.
- ACCESS AISLE COMPLYING WITH THE 2010 DOJ ADA STANDARDS SECTION 502.
- WHEEL STOP, TYPICAL AT ACCESSIBLE SPACES.
- 0" CURB.
- NEW STEP, 6" MAXIMUM. COORDINATE WITH FIELD CONDITIONS.
- NEW CONCRETE RAMP, 1:20 MAX SLOPE.
- NEW CONCRETE SIDEWALK, FLUSH WITH ADJACENT PARKING. ALL SLOPES AND CROSS SLOPES SHALL COMPLY WITH THE 2010 DOJ ADA STANDARDS.
- EXISTING PYLON SIGN. COORDINATE NEW SIGNAGE WITH OWNER'S VENDOR.
- APPROXIMATE LOCATION OF EXISTING GREASE INTERCEPTOR.
- EMERGENCY GENERATOR, RE: ELECTRICAL DUMPSTER, OWNER PROVIDED.
- 9'X18' TYPICAL EXISTING PARKING SPACE. STRIPING TO REMAIN, TYPICAL UNLESS OTHERWISE NOTED.
- TYPICAL EXISTING PARKING SPACE, 10'X20'.
- EXISTING PAVING TO REMAIN, TYP.
- NEW BICYCLE PARKING.
- ACCESSIBLE PATH OF TRAVEL.
- NEW ACCESSIBLE RAMP COMPLYING WITH DEPARTMENT OF JUSTICE 2010 ACCESSIBILITY STANDARDS.
- NEW 6" SIDEWALK CONNECTION TO PEDESTRIAN RIGHT-OF-WAY.
- EXISTING 4" SIDEWALK TO REMAIN.
- EXISTING GRASS TO REMAIN.
- EXISTING LANDSCAPING TO REMAIN.
- EXISTING PARKING LOT CURBS AND ROCK ISLANDS TO REMAIN, TYPICAL.
- EXISTING PARKING LOT LIGHTING TO REMAIN, TYPICAL.
- EXISTING CONCRETE SIDEWALK TO REMAIN, TYP.

PLANTING LEGEND

- EXISTING TREE TO REMAIN
- EXISTING TREE TO BE REPLACED
- NEW DECIDUOUS TREE
- NEW CONIFEROUS TREE

0 4' 8' 16' 32'
1/16" = 1' - 0"



1 SITE PLAN

A-100 SCALE: 1/16" = 1'-0"



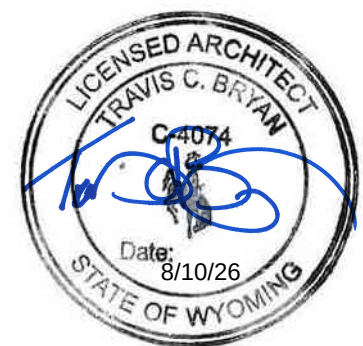
3033 SOUTH PARKER ROAD, SUITE 300
AURORA, CO 80014
303-649-1095

720 ROBB DR., SUITE 107
RENO, NEVADA 89523
775-852-3977

5245 PONDEROSA WAY, SUITE 110
LAS VEGAS, NEVADA 89118
702-869-9354

www.worthgroup.com

PROFESSIONAL SEAL



CONSULTANT:

CLIENT/PROJECT:

Bally's

**BALLY'S
CHEYENNE
TENANT
IMPROVEMENT**

1734 MEADOWLAND DR.
CHEYENNE, WYOMING

REVISIONS

NO.	DATE	DESCRIPTION
2	08/07/2026	ADDENDUM 02

SHEET DESCRIPTION
**ARCHITECTURAL SITE
PLAN**

**CONSTRUCTION
DOCUMENTS**

All drawings and specifications are the property of the architect. They shall not be used for any other project without the written consent of the architect. They shall not be used for any other project without the written consent of the architect. They shall not be used for any other project without the written consent of the architect.

DRAWING SCALE: WGA PROJECT NUMBER:

As indicated 26-201

PROGRESS DATE:

09 JUNE 2026

SHEET NUMBER:

A-100

●	ATM Cam	2.00	Ea
●	PNM-7082RVD	20.00	Ea
●	PNM-C9022V	9.00	Ea
●	QND-8080R	2.00	Ea
●	QND-C8013R	9.00	Ea
●	QNF-C9010	4.00	Ea
●	QNV-8080R	2.00	Ea
●	XNP-6120HW	2.00	Ea

Cheyenne

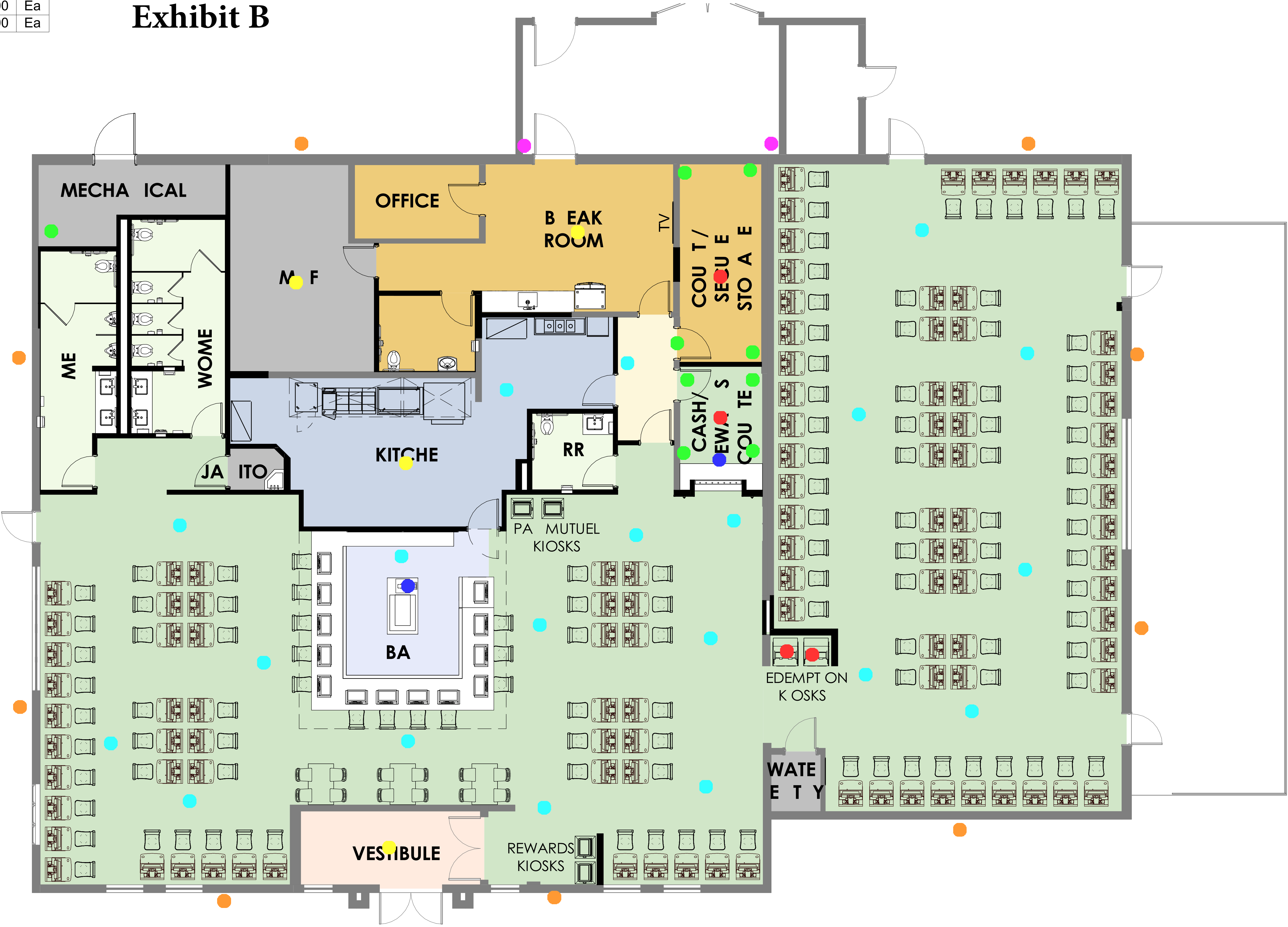
Exhibit B

Date: 05/29/26

ROOM USE LEGEND

- CIRCULATION - PUBLIC
- GAMING FLOOR
- BAR
- KITCHEN
- RESTROOMS
- OFFICE AREAS
- CIRCULATION - BOH/EMPLOYEE
- BUILDING SERVICES

ROOM	AREA
GAMING FLOOR	106
BAR	13
TOTAL:	119



REVISED BAR - FLOOR PLAN CONCEPT

CITY OF
CHEYENNE
— PLANNING & —
DEVELOPMENT

CITY OF CHEYENNE GOVERNING BODY
SEPTEMBER 14, 2026
STAFF REPORT

FILE: PUDC-26-211: Bally's Cheyenne – Special Use

REQUEST: A Special Use request to establish a Gaming Center use, in conjunction with a Simulcasting Permit

LOCATION: 1734 Meadowland Drive

APPLICANT: Bally's Wyoming LLC, d/b/a Bally's Cheyenne

AGENT: Bally's Wyoming LLC, d/b/a Bally's Cheyenne

OWNER: 1734 Partners LLC

ZONING: CB Community Business

FUTURE LAND USE: Mixed-use Commercial

PREPARED BY: Seth Lloyd, AICP, Senior Planner



APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.7 Special Use Approval
- UDC 5.7.13 Gaming Centers
- Plan Cheyenne

The development of Gaming Center requires Special Use approval pursuant to UDC 5.1.4, and the Governing Body is the decision-making body.

BACKGROUND:

The applicant is requesting Special Use approval for a proposed Gaming Center in the CB - Community Business zone district. The previous use of the site is a restaurant. The new proposed use is gaming parlor that falls under Gaming Center by the Unified Development Code.

This property previously submitted an application for Conditional Use approval through the Board of Adjustment. The application was submitted just prior to the Special Use code changes taking effect and was processed under the Conditional Use application process. The Board of Adjustment denied the application as the Board deemed the application, as submitted, did not meet all Conditional Use review criteria. The Conditional Use review criteria and Special Use criteria are similar, but not identical.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-Used Commercial	CB – Community Business	Food Service
North	Mixed-Used Commercial	CB – Community Business	Food Service, Retail
South	Mixed-Used Commercial	CB – Community Business	Commercial and Medical Care Center
East	Mixed-Used Commercial/Public Quasi Public	HR – High-density Residential/ CB – Community Business	Drainage, Multifamily residential, Single-family Residential
West	Mixed-Used Commercial	CB – Community Business	Retail, Food Service

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1) Whether the use meets applicable provisions of the UDC, including applicable development and design standards. In meeting these criteria, the reviewing body may consider design standards contained in the UDC that are not otherwise applicable in the zoning district, where the Design Objectives associated with such standards are relevant to the specific situation under review. (UDC 2.2.7.d.1)**

The subject property contains an existing building that was previously used as a restaurant. The applicant's proposal is to keep the building while remodeling the interior to accommodate the gaming center use. The applicant is proposing minimal exterior changes – most of which are focused on maintaining the original site layout.

The UDC has Gaming-Center specific regulations in UDC 5.7.13. This section requires Gaming Centers to be adjacent to a Collector, Minor Arterial, or Principal Arterial. The property at 1734 Meadowland Drive has 42' of frontage along Stillwater Avenue which is a Major Collector. The UDC does not require vehicular access onto the major street. This application meets this requirement.

UDC design standards include parking and access, landscaping, lighting, signage and façade design. The property is expected to be able to meet all design regulations applicable to property re-use in the CB zone. Due to the existing nature of the site, some design requirements may not be able to be fully met (but this would be broadly applicable to any use proposing to reuse the site) – for example, the standard for new construction would be to include a sidewalk that is detached from the curb with a 7' tree boulevard space, and to have the parking lot setback 6' from the property line adjacent to the street. Due to how this site was previously developed, a detached sidewalk would remove existing mature trees, and a 6' setback would remove an entire row of parking. The applicant has already submitted a formal site plan for Staff review. The submitted site plan has addressed the challenges presented by the re-use of the existing site and the applicant has proposed some improvements.

The design standard requires a 10-foot landscape buffer between the CB and HR zoning districts. The property to the east consists of a 55-foot-wide drainage swale and is zoned both CB and HR. Because the CB-zone is located within the drainage swale, the required buffer would technically be located on the neighboring property. However, although a buffer is not required on the applicant's property, the applicant has voluntarily provided a 10-foot landscape buffer on the site plan, consistent with typical buffer standards. The proposed buffer will provide a visual break and help minimize potential visual impacts associated with the proposed use.

Staff's analysis is that the proposed site plan substantially meets requirements as shown on the applicant site plan and does not require any special design standards. Staff recommends substantial compliance with the site plan submitted be a condition of approval.

The proposed special use **complies** with review criterion 1, with conditions.

2) Whether the operating characteristics of the use are complimentary to the character of the surrounding area in terms of hours of operation, visible and audible impacts, and traffic patterns caused by the use; (UDC 2.2.7.d.2)

The surroundings to the north, south, and west are commercial uses that a change of use would have minimal impact on. There is a residential subdivision to the east of the site. The operating characteristics of this use are complimentary to the surrounding area. Hours of operations are expected to be similar to other businesses within the area and similar to the previous use. There are no significant changes in traffic expected. There are no expected visible and audible impacts to the site.

Staff recommends a condition to limit hours of operation to match those of the surrounding commercial area.

The proposed special use **complies** with review criterion 2, with conditions.

3) Whether the use, compared with the suitability of the subject property for other uses permitted by right in the zoning district (UDC 2.2.7.d.3)

The CB Community Business zone allows for a multitude of uses. Generally, CB zone uses are expected to include high-traffic uses with a significant customer presence that draws from all around the community. The property previously was a restaurant, which is an expected use of the CB zone. Although the proposed use would be removing a property from a typical CB zone use, the proposed use is similar to CB zone uses and the proposed use of the property would not be detrimental to the area or the community.

The proposed special use **complies** with review criterion 3.

4) Whether the specific application of the use to the site supports the general intent and applicability of the zoning district, and does not compromise the general intent and applicability of adjacent zoning districts; (UDC 2.2.7.d.4)

The property is zoned CB Community Business. The CB zone is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts in meeting daily needs, discretionary needs, or other business functions. The zone is applicable to areas where moderate- or large-scale business uses are appropriate.

The proposed Gaming Center does not compromise the general intent or applicability of the adjacent HR High Density Residential district. The intent of the HR District is to accommodate a range of higher-density urban residential lots and building types, while protecting the urban character of the district and maintaining the primarily residential use of land. The HR District is intended to support more compact neighborhood development patterns and is not intended to prohibit nonresidential uses on adjoining properties where appropriate land use and site design measures are provided.

The existing drainage swale provides physical separation between the proposed use and the HR-zoned area. The applicant is also providing a 10-foot landscape buffer, which exceeds what is technically required on the applicant's property and is consistent with typical buffer standards. The buffer will provide a visual separation between the use and the adjacent residential district and help minimize potential impacts to the residential character of the HR District.

Given the existing separation, proposed landscaping, and site design, the Gaming Center will not compromise the intent of the HR District to protect its urban character and primarily residential land use. The proposed special use is therefore consistent with the general intent and applicability of the adjacent zoning district.

The proposed special use **complies** with review criterion 4.

5) The duration of the proposed Special Use is relevant to the applicability requirements of the zoning district and adjacent zoning districts. (UDC 2.2.7.d.5)

The proposed Special Use does not have an anticipated end date. The property is proposed to be used for a commercial-style use in the CB zone, and other uses in the CB zone could re-use the site if or when the proposed use ceases operation.

The proposed special use **complies** with review criterion 5.

6) Whether any additional site specific conditions associated with the application are warranted and sufficient to prevent any potential harm to the public health, safety or general welfare; (UDC 2.2.7.d.6)

Conditions are proposed under other review criteria. No special conditions outside of those suggested by the other review criteria appear warranted.

The proposed special use **complies** with review criterion 6, with conditions.

7) Whether the use is in conflict with other applicable City, State or Federal regulations; (UDC 2.2.7.d.7)

This use does not appear to be in conflict with any other regulations.

The proposed special use **complies** with review criterion 7.

8) The adequacy of infrastructure supporting the site. (UDC 2.2.7.d.8)

This property is adjacent to a major collector and near to the Dell Range arterial. The site is a previously developed site in a developed area and basic infrastructure already exists in the area, including wet and dry utilities and stormwater facilities. No changes to infrastructure appear necessary for this use.

The proposed special use **complies** with review criterion 8.

9) Whether the proposed use contributes demonstrable public benefits, including but not limited to affordable housing, additional recreational opportunities, preservation or provision of open space, cultural amenities, or other improvements that serve the general welfare of the community. (UDC 2.2.7.d.9)

The proposed use would rehabilitate an existing site and structure. The applicant has not proposed providing any specific public benefit outside of the site. As a use largely compatible in this area and in the community, no public benefits are expected to be needed to offset the negative impacts of the proposed use.

The proposed special use **complies** with review criterion 9.

10) Whether the proposed use maintains an appropriate separation from sensitive uses in the vicinity, including but not limited to schools, child care centers operating as the sole primary use of an independent structure, places of worship, and public

parks or recreation facilities. The reviewing body may weigh the degree of physical or functional separation between uses, the presence of intervening development or infrastructure, the operational characteristics of both the proposed use and any nearby sensitive use, the length of operation of both the proposed use and any nearby sensitive use, and whether the zoning context reasonably anticipates the colocation of proposed special uses in proximity to such facilities. (UDC 2.2.7.d.10)

The nearest public schools to the subject property are Coyote Ridge and Anderson. Both of these schools are over 4,000 feet away.

The nearest known child care center or preschool is a preschool located in a tenant space on Stillwater Avenue about 1,300 feet to the west. This preschool is less than 1,000 feet from an existing Gaming Center.

The nearest known church is located northeast of Converse and Dell Range – about 4,000 feet away.

The nearest public park is Dutcher Fields, approximately 2,000 feet away to the east. A connection to the Greenway is located just across the street from the southeast corner of the subject property.

Although the Greenway is a recreational facility, it is also used for non-motorized transportation and connecting neighborhoods. No adverse impacts to these facilities are anticipated.

The proposed special use **complies** with review criterion 10.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

The subject property and all the surrounding areas are designated mixed-use commercial by the comprehensive plan (except for areas used for public purposes). The comprehensive plan expects this area to develop with a wide variety of land uses and activities, focused primarily on commercial activities, but also including other employment, public, and residential uses. The proposed use is consistent with the comprehensive plan.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on August 29, 2026 and September 5, 2026.
- **Mailed Notice.** The applicant coordinated with Staff the mailing of letters to neighbors the week of August 24, 2026; Staff's understanding is that the letters were sent, but do not have a copy of a sent letter.
- **Posted Notice.** As of the publication of the Staff Report (September 9, 2026), staff had not received evidence of posted notice. However, notice was posted with the previous conditional use.

- **Internet Posting** on connect.cheyennecity.org on August 17, 2026.

As of the publication of the Staff Report (September 9, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 184 views and no comments. Through the previous application earlier this year, there were no public comments on the conditional use request.

STAFF REVIEW:

Through the review process, no major comments were received.

CONCLUSION:

Staff is satisfied that the proposed special use meets the relevant review criteria and therefore recommends approval, with the following conditions:

1. The site is developed in substantial compliance with the site plan submitted.
2. The terminals shall be located in compliance with the terminal diagram submitted.
3. Hours of operation shall be limited to the hours of 7am to 2am.

The conditions in the staff report are included in the Resolution. Should the Governing Body wish to add, remove, or modify conditions, the Resolution will need to be amended accordingly.

ALTERNATIVES:

1. Approve the project as submitted by the applicant.
2. Approve the project subject to conditions (**Staff Recommendation**).
3. Deny the project. The Governing Body must conclude that the project does not meet all the review criteria. Denial shall include findings pursuant to Wyoming State Statute 11-25-210(g)(vi).
4. Postpone the project.

General Information Regarding Alternatives:

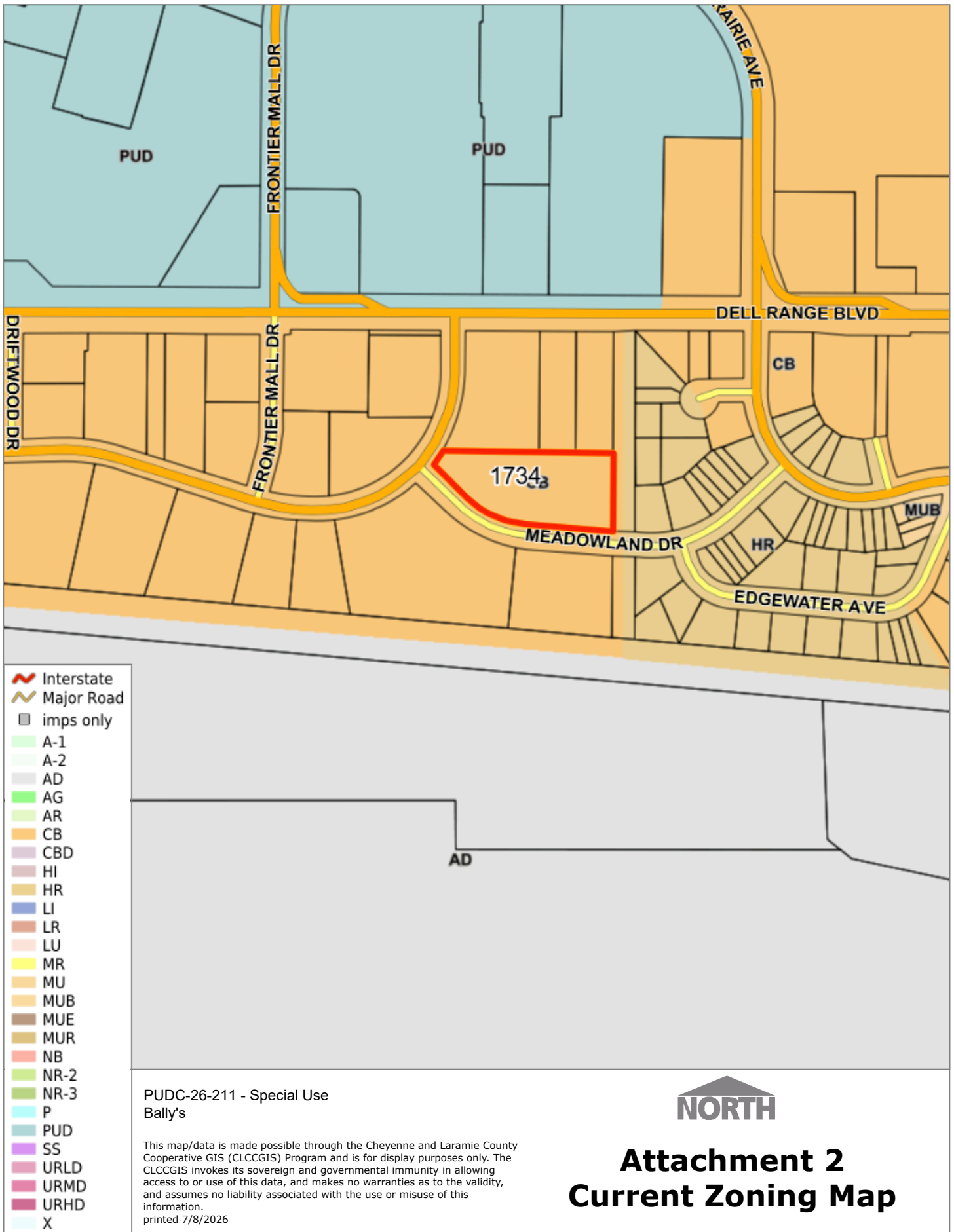
If the Governing Body acts contrary to staff's recommendation or modifies conditions of approval, the Governing Body should cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval, with conditions, of the resolution approving a Gaming Center use and associated Simulcasting Permit.

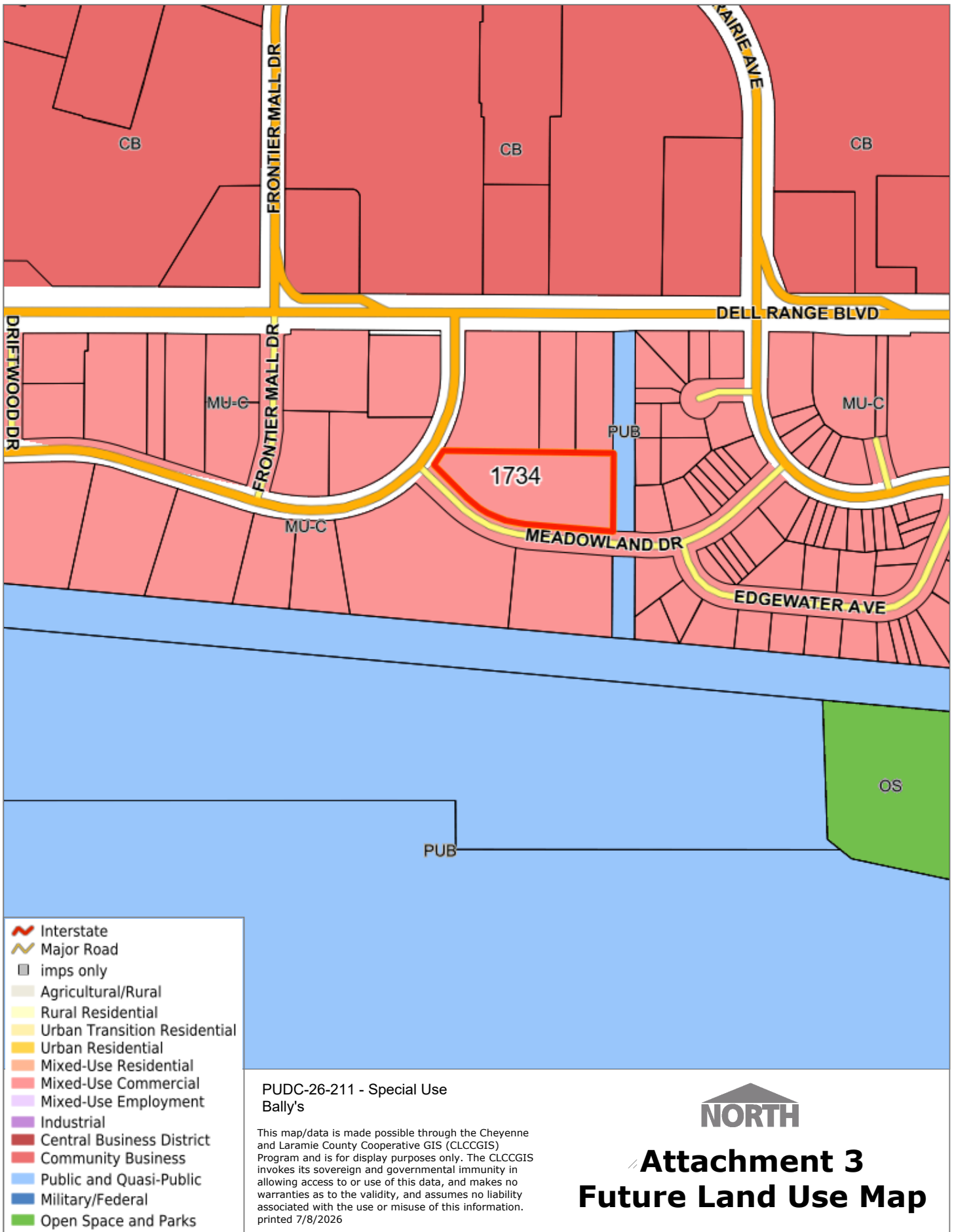
ATTACHMENTS:

1. Resolution (in packet prior to the Staff Report and includes Exhibit A - Site Plan, and Exhibit B - Terminal Locations)
2. Current Zoning Map
3. Future Land Use Map
4. Master Application



PUDC-26-211 - Special Use
Bally's

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, and makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.
printed 7/8/2026



Record No: PUDC-26-211

Special Use

Status: Active

Submitted On: 8/12/2026

Primary Location

1734 MEADOWLAND DR
Cheyenne, WY 82009

Owner

1734 PARTNERS LLC
PO BOX 50630 CASPER, WY 82605

Application

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Project Name* ?

Bally's Cheyenne

Current Zoning* ?

CB Community Business

Proposed Use*

Gaming Center

Number of anticipated employees*

10

Proposed Parking Spaces* ?

103

Is this property within the RE Overlay District?*

No

Proposed hours of operation *

10:00am to 12:00am Sunday through Thursday. 10:00am to 2:00am Friday and Saturday.

Review Criteria

The following review criteria are found in the UDC regarding a special use. Please acknowledge the proposed special use meets each review criterion by checking the box.

Whether the use meets applicable provisions of the UDC, including applicable development and design standards. In meeting these criteria, the reviewing body may consider design standards contained in the UDC that are not otherwise applicable in the zoning district, where the Design Objectives associated with such standards are relevant to the specific situation under review.*



Whether the operating characteristics of the use are complimentary to the character of the surrounding area in terms of hours of operation, visible and audible impacts, and traffic patterns caused by the use (2.2.7.d.1).*



Whether the use, compared with the suitability of the subject property for other uses permitted by right in the zoning district (2.2.7.d.2).*



Whether the specific application of the use to the site supports the general intent and applicability of the zoning district, and does not compromise the general intent and applicability of adjacent zoning districts (2.2.7.d.3).*



The duration of the proposed Special Use relevant to the applicability requirements of this section (2.2.7.d.4).*



Whether any additional site specific conditions associated with the application are sufficient to prevent any potential harm to the public health, safety or general welfare (2.2.7.d.5).*



Whether the use is in conflict with other applicable City, State or Federal regulations (2.2.7.d.7).*



The adequacy of infrastructure supporting the site (2.2.7.d.8).*



Whether the proposed use contributes demonstrable public benefits, including but not limited to affordable housing, additional recreational opportunities, preservation or provision of open space, cultural amenities, or other improvements that serve the general welfare of the community (2.2.7.d.9).*



Whether the proposed use maintains an appropriate separation from sensitive uses in the vicinity, including but not limited to schools, child care centers operating as the sole primary use of an independent structure, places of worship, and public parks or recreation facilities. The reviewing body may weigh the degree of physical or functional separation between uses, the presence of intervening development or infrastructure, the operational characteristics of both the proposed use and any nearby sensitive use, the length of operation of both the proposed use and any nearby sensitive use, and whether the zoning context reasonably anticipates the colocation of proposed special uses in proximity to such facilities (2.2.7.d.10).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

✓ Jonathan Hanes
Aug 5, 2026

Please acknowledge the following requirements by checking each box.

In Community Business - CB, Mixed-Use Business - MUB, and Central Business District - CBD: Be adjacent to a Collector, Minor Arterial, or Principal Arterial street. Access to a Collector, Minor Arterial, or Principal Arterial street is not required.



Attachments

	Plot Plan / Site Plan A-100 - ARCHITECTURAL SITE PLAN.pdf Uploaded by Jon Hanes on Aug 12, 2026 at 12:41 PM	REQUIRED
	Letter of Authorization Special Use Letter of Authorization.pdf Uploaded by Jon Hanes on Aug 6, 2026 at 4:12 PM	REQUIRED
	Building Elevations / Photographs / Site Photographs Existing Building Photos.pdf Uploaded by Jon Hanes on Aug 6, 2026 at 4:09 PM	REQUIRED
	Drainage Worksheet / Study Drainage Worksheet.pdf Uploaded by Jon Hanes on Aug 6, 2026 at 4:08 PM	REQUIRED
	Photos of Posted Notice IMG_3455.HEIC Uploaded on Aug 27, 2026 at 2:23 PM	
	Transportation Worksheet / Study Transportation Worksheet.pdf Uploaded by Jon Hanes on Aug 7, 2026 at 1:04 PM	REQUIRED

	Historic Horse Racing Facility Terminal Layout Historic Horse Racing Facility Terminal Layout.pdf Uploaded by Jon Hanes on Aug 6, 2026 at 4:08 PM	REQUIRED
	Mailed Notification Letter Bally's - Draft Neighbor Notification .pdf Uploaded by Jon Hanes on Aug 12, 2026 at 3:00 PM	REQUIRED
	Neighbor Notification List.xlsx Neighbor Notification List.xlsx Uploaded by Jon Hanes on Aug 12, 2026 at 1:05 PM	
	Bally's - Letter re Criteria.pdf Bally's - Letter re Criteria.pdf Uploaded by Jon Hanes on Aug 12, 2026 at 3:11 PM	
	2026-08-17 County Notification.pdf 2026-08-17 County Notification.pdf Uploaded by Charles Bloom on Aug 17, 2026 at 11:05 AM	
	Bally-s_-_Draft_Neighbor_Notification__Tues_Aug_18_2026.pdf Bally-s_-_Draft_Neighbor_Notification__Tues_Aug_18_2026.pdf Uploaded on Aug 18, 2026 at 5:32 PM	
	IMG_7105.HEIC IMG_7105.HEIC Uploaded on Aug 26, 2026 at 6:17 PM	



August 12, 2026

Charles W. Bloom, AICP, Director
Planning and Development Department
2101 O'Neil Avenue Room 205
Cheyenne, Wyoming 82001

Re: Bally's Wyoming LLC, d/b/a Bally's Cheyenne – Application for Special Use Approval

Mr. Bloom:

On behalf of Bally's Wyoming, LLC d/b/a Bally's Cheyenne, this letter provides supplemental information regarding the Special Use criteria set forth in UDC Section 2.2.7. The information below is intended to assist in the review of the application and provide additional context regarding issues discussed during the Board of Adjustment proceedings.

- 1. Whether the use meets applicable provisions of the UDC, including applicable development and design standards. In meeting these criteria, the reviewing body may consider design standards contained in the UDC that are not otherwise applicable in the zoning district, where the Design Objectives associated with such standards are relevant to the specific situation under review.*

The planning and development staff provided guidance and requirements during the requisite work session process. The existing building complies with applicable UDC standards for setbacks, height, façade articulation, and materials, and no exterior modifications are proposed that would alter its established scale or form. The site is located within the CB zoning district, where a mix of commercial and service uses is intended, and surrounding properties are developed with similar uses. The existing site design meets UDC parking and landscape requirements and remains consistent with the character and functionality of the area. The proposed change in use does not alter the building footprint or overall site layout. The addition of a pedestrian connection to the public right-of-way enhances accessibility and supports UDC design objectives for connectivity without changing the established site character. Although the proposed use differs operationally from the prior restaurant use, the site itself remains substantially unchanged. The existing building, parking layout, access points, and buffering continue to serve the property without expansion of the building footprint or intensity of site development.

- 2. Whether the operating characteristics of the use are complimentary to the character of the surrounding area in terms of hours of operation, visible and audible impacts, and traffic patterns caused by the use.*

There are (3) existing operating restaurants and fast-serve facilities to the north and directly adjacent the applicants property. Operating hours for the fast-serve are from 7:00am to 2:00am, 7 days a week. There are no exterior sound system or outdoor activities planned around the proposed use. Existing exterior sound equipment is being removed to reduce any audible impacts to surrounding areas. In addition, privacy film is being added to existing windows to reduce any visual impacts from the interior spaces to the surrounding areas. The parking count remains the same. The seat count for the planned operation is

reduced from the prior use, and the bar and kitchen operations have also been consolidated. There is no anticipation that there will be any impacts to traffic circulation around the property. Staff concurred with this assessment. While no formal traffic or noise study was required during the review process, the proposed use includes a reduced seating count, no outdoor entertainment areas, removal of exterior sound equipment, and no increase in parking demand, all of which support the conclusion that impacts will remain compatible with surrounding uses. Accordingly, the operating characteristics of the proposed use are compatible with the existing commercial character of the surrounding area.

3. *Whether the use, compared with the suitability of the subject property for other uses permitted by right in the zoning district.*

The subject property previously operated as a high-traffic restaurant and entertainment venue, making it well suited for the proposed Entertainment, Amusement, Recreation - Other use within the CB zoning district. The CB district accommodates a mix of commercial and service uses, and the property is already developed with a building and site layout appropriate for this use. The existing structure, parking, and access configuration support the proposed use with minimal modification. Given that the site previously operated as a restaurant, which generally involves higher activity and traffic levels, the site is equally or better suited for the proposed Service Use. The property is therefore as suitable for this use as other uses permitted within the district.

4. *Whether the specific application of the use to the site supports the general intent and applicability of the zoning district, and does not compromise the general intent and applicability of adjacent zoning districts.*

The subject property's prior use was a highly themed sports bar and restaurant entertainment venue. The proposed use is compatible with the location history.

Per UDC 5.4.2, the CB District is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts in meeting daily needs, discretionary needs, or other business functions. This proposed Entertainment, Amusement, Recreation - Other use falls under the Service use category per UDC 1.4.4, therefore complying with the general intent of the CB zoning district.

Per UDC 5.4.2, the CB District is applicable in areas where moderate or large-scale business uses are appropriate. The proposed Entertainment, Amusement, Recreation - Other use will be a moderately sized business with no added square footage to the existing vacant building.

Per UDC 5.3.5 the adjacent HR District is intended for a range of higher density, urban residential lots and building types within a neighborhood. All uses require full access to public infrastructure and city services. The regulations are designed to protect the urban character of the district and protect the primarily residential use of land. The proposed Entertainment, Amusement, Recreation - Other use does not impact the aforementioned intent of the HR District. The residential use of land is protected and

separated from the proposed Entertainment, Amusement, Recreation - Other use by the drainage easement that prevents patron overflow onto residential properties.

Per UDC 5.3.5 the adjacent HR District is applicable to areas where more compact neighborhood development patterns are desired and is typically used only in areas that are no more than ¼ mile from *Activity Centers*. *Activity Center* is defined by the UDC as places where economic and social activity are focused. The existing CB district and proposed Entertainment, Amusement, Recreation - Other use reasonably can be labeled as an *Activity Center*. Thus, the proximity of the proposed Entertainment, Amusement, Recreation – Other use to the adjacent HR District is consistent with the development pattern contemplated by the UDC.

5. *The duration of the proposed Special Use relevant to the applicability requirements of the zoning district and adjacent zoning districts.*

The proposed Special Use is intended to be a long-term investment and occupancy of the property and is consistent with the long-range planning framework for the site and surrounding area. The CB zoning district is intended to support a mix of commercial and service uses over the long term, and the proposal aligns with this role. The use is intended as a permanent occupancy and is comparable in longevity to surrounding commercial and service uses. The area is characterized by a stable mix of these uses, and the proposal represents a continuation of this established pattern. No significant shift in area character is occurring that would make the use incompatible. The change from a restaurant to a service use maintains the existing function of the site and is consistent with anticipated future development within the CB district.

6. *Whether any additional site-specific conditions associated with the application are warranted and sufficient to prevent any potential harm to the public health, safety or general welfare.*

The existing vacant building is detrimental to the community with no day-to-day property management or supervision. Additionally, unhoused individuals have been observed occupying areas around the vacant building. The proposed Entertainment, Amusement, Recreation - Other use will bring 24/7 surveillance and consistent building and site maintenance providing a safer condition for the community. In addition, the Owner is creating an accessible pedestrian pathway from Stillwater Ave onto property to improve safe passage of pedestrians, as well as a new accessible ramp at the corner of Stillwater Ave. and Meadowland Dr. to improve safe passage of pedestrians. Lastly, the owner has added trees along the eastern property line to provide additional screening elements from the apartments. Collectively, the enhanced surveillance, ongoing site management, pedestrian improvement, ADA accessibility upgrades, and additional landscape screening constitute site-specific measures intended to promote public safety, improve compatibility with neighboring properties, and protect the general welfare.

7. *Whether the use is in conflict with other applicable City, State or Federal regulations.*

The proposed use complies with applicable City, State, and Federal regulations.

8. *The adequacy of infrastructure supporting the site.*

Existing utilities and parking support the proposed use, no added impacts to public utilities and infrastructure are anticipated. Previous work sessions with staff have not resulted in requests for additional infrastructure other than the noted repairs. The owner is proactively implementing those repairs now ahead of the change-of-use approval. Existing public infrastructure is sufficient to support the proposed use without material upgrades or public expenditure.

9. *Whether the proposed use contributes demonstrable public benefits, including but not limited to affordable housing, additional recreational opportunities, preservation or provision of open space, cultural amenities, or other improvements that serve the general welfare of the community.*

As part of the proposed use, the building is being enhanced and upgraded with new paint, new roofing, new landscaping, repaired public walkways, replacement signage and awnings, and repairs to the building exterior. The dilapidated exterior trellis is also being removed to improve the exterior aesthetic and curb appeal of the property. Collectively, these improvements will rehabilitate a long-vacant property and enhance the appearance and functionality of the surrounding area and benefit the public.

10. *Whether the proposed use maintains an appropriate separation from sensitive uses in the vicinity, including but not limited to schools, childcare centers operating as the sole primary use of an independent structure, places of worship, and public parks or recreation facilities. The reviewing body may weigh the degree of physical or functional separation between uses, the presence of intervening development or infrastructure, the operational characteristics of both the proposed use and any nearby sensitive use, the length of operation of both the proposed use and any nearby sensitive use, and whether the zoning context reasonably anticipates the colocation of proposed special uses in proximity to such facilities.*

No schools, childcare centers, places of worship, or parks / rec areas are within 300' of the proposed use. An existing 55' drainage easement running north south along the eastern property boundary separates the site from the adjacent high density residential complex. The building structure sits further back from the property line and is approximately 260' from the nearest residential use.

We appreciate your assistance in navigating the newly implemented change-of-use process. Please accept this letter as part of our application and for your consideration in support of our request.

Sincerely,

Mark A. Schlang

Mark A. Schlang
Vice President of Architect
Bally's